

Sarad Kumar Gupta v. State of U.P.

Allahabad High Court · Division Bench · 23 March 2017 · Writ-C No. 12196 of 2017 · **Writ dismissed; petitioners relegated to Clause 6.5.**

HEADNOTE

A writ disputing the amount charged in electricity bills is not entertainable when Clause 6.5 of the Electricity Supply Code, 2005 affords a statutory alternative remedy. The Division Bench declined to hear the petition and dismissed it.

FACTUAL SUMMARY

The petitioners, Sarad Kumar Gupta and another, approached the Allahabad High Court by a writ petition disputing the amount charged by the respondent electricity corporation in their bills. Counsel for the corporation submitted that the petitioners could avail the statutory remedy under Clause 6.5 of the Electricity Supply Code, 2005. The Court held that a statutory alternative remedy existed and declined to entertain the petition, dismissing it on 23 March 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — alternative remedy

HOLDING

A writ petition disputing the amount charged by the distribution licensee in electricity bills will not be entertained when the consumer has the statutory alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE AMOUNT CHARGED IN THE ELECTRICITY BILLS

Writ declined on the Clause 6.5 alternative remedy; no merits examination. ¶ 1